

complaint

Ms K complained because Lloyds Bank General Insurance Limited declined her home insurance claim for stolen contents.

background

Ms K made a claim on her contents insurance for items that she said had been stolen from the insured address. Lloyds rejected the claim advising that Ms K hadn't been responsible in looking after her belongings. Ms K wasn't happy with Lloyd's response so complained to us.

An investigator looked at Ms K's claim. And thought that Lloyds had acted fairly. She explained that Lloyds had applied three exclusions which mean they are entitled not to pay the claim.

- Ms K hadn't lived at the property for over 30 days
- Ms K hadn't taken reasonable care with her belongings
- the theft had been caused by a deliberate act by her family member

Ms K disagreed with our investigator's view stating:

- She was at the property every one or two days as evidenced by the animals she looked after. And she was on the property council tax at the time of the theft therefore the property wasn't unoccupied.
- The Order from the judge didn't state Ms K needed to remove all of her belongings immediately.
- Mr K stopped her getting her belongings and refused her access to take the belongings from the house.

As Ms K didn't agree with our investigator it's been passed to me for a decision.

my findings

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint. And in doing so I've come to the same conclusion as the investigator.

Ms K's policy provided cover for damage to the contents of her home caused by theft or attempted theft, but not if the home hadn't been lived in for more than 30 days.

In this case, at the time of the claim Ms K had moved out of the insured address and was only visiting on a daily or every other day basis. She hadn't lived in the home since November 2016, a period of roughly three months.

Ms K has explained that she visited the property at least every other day and was on the council tax. I appreciate that Ms K believes this means the property wasn't unoccupied. However I need to determine whether I think Ms K was 'living' in the property, in other words was sleeping and washing there most of the week. I think it is clear this wasn't the case. Ms K was living at another property but visiting the insured property on a regular basis. And this isn't sufficient for me to think the unoccupied exclusion condition shouldn't apply.

Lloyds has also highlighted two other terms of the policy which it considers means it shouldn't have to meet the claim. As my view is that Lloyds can reasonably rely on the exclusion for unoccupied properties to decline the claim, I don't intend to comment further on these other two items.

I realise this will likely be disappointing to Ms K. However I'm satisfied Lloyds are entitled to apply the exclusion for unoccupied properties and decline her claim. Therefore I won't be asking Lloyds to do anymore here.

my final decision

I don't uphold Ms K's complaint.

Under the rules of the Financial Ombudsman Service, I'm required to ask Ms K to accept or reject my decision before 28 July 2018.

Jeff Burch
ombudsman